THE INDIAN TOLLS ACT, 1864

ARRANGEMENT OF SECTIONS

Preamble.

SECTIONS

1. [*Omitted.*].

2. Collectors of tolls may compound for tolls leviable under Act 8 of 1851 or this Act.

3. Power to extend Act.

4. [*Repealed.*].

[*SCHEDULE*].—[*Omitted.*].

IndiaCode

THE INDIAN TOLLS ACT, 1864[1]

ACT NO. 15 OF 1864

[24*th March*, 1864.]

An Act to amend Act 8 of 1851 (for enabling Government to levy Tolls on Public Roads and Bridges).

Preamble.—WHEREAS by Act 8 of 1851 (*for enabling Government to levy Tolls on Public Roads and Bridges*) authority was given for the levy of certain rates of toll [2]***; It is enacted as follows:—

1. [*Schedule of Act* 8 *of* 1851 *repealed, and another Schedule substituted*].—*Omitted by the Devolution Act*, 1920 (38 *of* 1920), *s.* 2 *and the First Schedule* (*w.e.f.* 14-9-1920).

2. Collectors of tolls may compound for tolls leviable under Act 8 of 1851 or this Act.—Any person entrusted with the management of the collection of tolls[3] under Act 8 of 1851 may in his discretion compound for any period not exceeding one year with any person for a certain sum to be paid by such person for himself or for any vehicle or animal kept by him, in lieu of the rates of toll [4][authorised to be levied under the said Act 8 of 1851].

3. Power to extend Act.—The State Government may extend this [5]Act to any place in which the said Act 8 of 1851 is in force; and the State Government of any place in which the said Act 8 of 1851 is not in force may extend the said Act 8 of 1851 and this Act to such place.[6]

4. [*Interpretation-clause. Local Government*].—*Rep. by the A.O.*1937.

[*SCHEDULE*].—*Omitted by the Devolution Act*, 1920 (38 *of* 1920), *s*. 2 *and the First Schedule* (*w.e.f.* 14-9-1920).

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1. Short title given by the Indian Short Titles Act, 1897 (14 of 1897).

This Act has been declared to be in force in the Santhal Parganas by the Santhal Parganas Settlement Regulation, 1872 (3 of 1872), s. 3, in the C. P. and the Sambalpur District by the C. P. Laws Act, 1875 (20 of 1875).

It has been declared by notification under s. 3(*a*) of the Scheduled Districts Act, 1874 (14 of 1874), to be in force in the following Scheduled Districts, namely:—

The Districts of Hazaribagh, Lohardaga (now the Ranchi District, see Calcutta Gazette, 1899, Pt. I, p. 44), and Manbhum, and Pargana Dhalbhum and the Kolhan in the District of Singbhum . . .	*see* Gazette of India,	1881, Pt. I, p. 504.
The District of Lahaul	Ditto	1886, Pt. I, p. 301.

It has been extended, by notification under s. 5 of the last-mentioned Act, to the Scheduled District of Coorg *See* Gazette of India, 1878, Pt. I, p. 45.

The Act has been extended to Ajmer-Merwara along with Act 8 of 1851, see Gazette of India, 1889, Pt. II, p. 562; to the Scheduled Districts in Vizagapatam and Ganjam, *see* Fort St. George Gazette, 1899, Pt. I, p.1486, and *ibid*. 1900, Pt. I, p. 1101, respectively; and to the District of Darjeeling, *see* Calcutta Gazette, 1934, Pt. I. p. 179

The Act has been extended to the Union territory of Pondicherry by Act 26 of 1968, s. 3 and the Schedule.

The Act is to be deemed to be and to have been in force in the Punjab, from the 24th March, 1864, *see* the Indian Tolls Act, 1888 (8 of 1888), s. 1 and tolls levied or purporting to have been levied under the Act before the passing of Act 8 of 1888, are to be deemed to have been lawfully levied—*see* s. 3, *ibid.*

The Act has been repealed in Mysore by Mysore Act 29 of 1958.

The Act has been amended in Andhra Pradesh by Andhra Pradesh Act 17 of 1975.

2. Certain words omitted by Act 38 of 1920, s. 2 and the First Schedule (w.e.f. 14-9-1920).
3. The Indian Tolls Act, 1851.
4. Subs. by Act 38 of 1920, s. 2 and the First Schedule, for "specified in the Schedule to the said Act 8 of 1851 or in the Schedule to this Act".
5. The Act now regulating tolls in the Presidency of Bombay is the Tolls on Roads and Bridges Act, 1875 (Bom. 3 of 1875). That Act repealed Act 8 of 1851 in the Bombay Presidency, *see* s.1, and declared that Act 15 of 1864 should be deemed to have been extended thereto as from the 30th July, 1864, *see* s. 2.
6. Act 8 of 1851 and this Act have been extended to Oudh (*see* Gazette of India, 1865, Pt. I, p. 777), the C.P. (*see ibid*., Pt. I, 1871, p. 611) and to the District of Lakhimpur (*see* Assam Gazette, 1935, Pt. II, p. 1025).

As to the authority of the Provincial Government in any part of the Provinces, not specified in s. 2 of Act 8 of 1851, to which that Act or this Act may be or have been extended see the Indian Tolls Act, 1888 (8 of 1888), s. 2(*1*).